

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
July 24, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
9:00 AM Line 1 23-CIV-04152	GURPINDER BRAR VS. GENERAL MOTORS, LLC
GURPINDER BRAR GENERAL MOTORS, LLC	BRIAN K. CLINE STACEY S. DAVIS

Plaintiff's Motion to Enforce Settlement Pursuant to Breach of Contract and Equitable Principles

TENTATIVE RULING:

Plaintiff Gurpinder Brar's Motion to Enforce Settlement Pursuant to Breach of Contract and Equitable Principles is DENIED, as follows:

Plaintiff's unopposed Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code section 452 subd. (d).

This Song-Beverly Consumer Warranty Act action pertains to Plaintiff's 2024 Cadillac Lyric, purchased on July 4, 2023. Plaintiff filed this action on September 6, 2023 against the vehicle's manufacturer, Defendant General Motors, LLC. The parties entered private mediation on December 12, 2024. Plaintiff previously moved to enforce a settlement agreement reached at that mediation pursuant to Code Civ. Proc. section 664.6, and the motion was denied because Plaintiff did not meet its burden of proof to establish the existence of a writing signed by the parties within the meaning of that statute. (See RJN, Exh. A.)

Equitable Authority

Settlement agreements which do not meet the criteria for enforcement under Code Civ. Proc. section 664.6 may be enforced in the underlying action by a motion for summary judgment, which may necessitate amendment of the pleadings, or by amendment to the pleadings. (*Levy v. Sup.Ct. (Golant)* (1995) 10 C4th 578, 586, fn. 5; *Stewart v. Preston Pipeline Inc.* (2005) 134 CA4th 1565, 1584-1585; *Irvine v. Regents of Univ. of Calif.* (2007) 149 CA4th 994, 1000.) The California Supreme Court has reaffirmed that separate suits in equity, as opposed to the kind of equitable enforcement within the underlying action for which Plaintiff advocates, were an allowable method for enforcement prior to creation of the statutory procedure under Code Civ. Proc. section 664.6; "[b]efore section 664.6 was enacted, if one party to a settlement agreement failed to perform one of its obligations, the party seeking to enforce the agreement often had to file a separate lawsuit for breach of the settlement agreement. Section 664.6 offers a more efficient alternative procedure for resolution of disputes that arise over settlement agreements." (*Madrigal v. Hyundai Motor America* (2025) 17 Cal.5th 592, 600, fn 3.)

Here, Plaintiff seeks a fourth option, enforcement via inherent equitable authority or under Code of Civil Procedure (“CCP”) section 128 subd. (a). The Court’s inherent equitable authority does not permit the avoidance of established procedure. CCP section 128 subd. (a)(4) provides that every court shall have the power “[t]o compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein.” However, the minute order with which Plaintiff asks the Court to compel obedience does not order anything other than the denial of Plaintiff’s prior motion under CCP section 664.6. (See RJN, Exh. A.)

In response to Defendant’s position that this Motion, if considered, should be held to the procedural requirements of a summary judgment motion, Plaintiff argues that “summary judgment exists to resolve factual disputes through a structured process” and that its procedural protections are not necessary here. (Reply, at p. 3:19-20.) On the contrary, summary judgment is to be “granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. section 437c subd. (c).) Its purpose therefore is not to resolve factual disputes, but to offer an expedient method of resolving an action where the material facts are not in dispute, and the procedural requirements apply as much here as in any case.

No cause of action for breach of contract has been alleged in Plaintiff’s Complaint, and this Motion cannot succeed as a summary judgment motion, or a summary adjudication motion as to that cause of action, regardless of other procedural issues.

Plaintiff also argues that the Motion should be granted under theories of unjust enrichment and promissory estoppel. Neither have been pleaded as causes of action or remedies in Plaintiff’s operative Complaint, nor have the underlying facts regarding the settlement agreement been alleged. The Motion therefore cannot be granted on this basis.

The Court understands the apparent impetus for both this current motion and the prior motion whereby Plaintiff has sought to enforce the settlement agreement that at least Plaintiff believed was reached. Under the current circumstances, further motions related to this would not appear to be productive. The Court will address this with counsel at the upcoming August 3, 2026 Case Management and Trial Setting Conference.

In any event, this motion is accordingly DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

24-CIV-04462 SCOTT SULLIVAN VS STATE OF CALIFORNIA; ET AL

SCOTT ALLEN SULLIVAN
STATE OF CALIFORNIA

PRO SE

Order to Show Cause Re: Dismissal

TENTATIVE RULING:

No tentative ruling, plaintiff to appear in person on this OSC re: Dismissal.

9:00 AM

Line 3

24-CIV-08213 JANEEN MARQUARDT, ET AL VS. PHILIP PERA, ET AL

JANEEN MARQUARDT
PHILIP PERA

WILLIAM S. WILSON
ASHLEY E. KLEIN

Defendants' Demurrer to First Amended Complaint

TENTATIVE RULING:

The Demurrer of Defendants Philip Pera and Marlita Pera ("Defendants") to the First Amended Complaint ("FAC") of Plaintiffs Janeen Marquardt and Robert Marquardt ("Plaintiffs") is SUSTAINED WITH LEAVE TO AMEND in part, and OVERRULED in part, as set forth below.

Defendants demur to all eight causes of action based on failure to allege facts sufficient to constitute a cause of action.

Defendants' Memorandum exceeds the permitted page limits.

Defendants filed a 16-page memorandum, which exceeds the page limits allowed under California Rules of Court, rule 3.1113(d) without a court order. Plaintiffs ask the court to only consider the first 15 pages and disregard the remainder. The court exercises its discretion to consider Defendants' entire memorandum this time, but Defendants are CAUTIONED to comply with the page limit in the future or else the court will be inclined to exercise its discretion to disregard it. (See Cal. Rules of Court, rule 3.1113(g) [a memorandum that exceeds the page limits is considered in the same manner as a late-filed paper].)

The court reads the allegations of the original Complaint into the FAC.

Under the sham pleading doctrine, a plaintiff is precluded from amending the complaint to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in a demurrer or summary judgment motion. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425.) The policy against sham pleading requires the plaintiff to explain satisfactorily any such omission. (*Id.* at p. 426.) The purpose of the sham pleading doctrine is to enable the courts to prevent an abuse of process, but it is not intended to prevent an honest plaintiff from correcting erroneous allegations or to prevent the correction of ambiguous facts. (*Hahn v. Mirza* (2007) 147 Cal.App.4th 740, 751.) Where the sham pleading doctrine applies, the court may take judicial notice of the prior pleadings and disregard the inconsistent allegations. (*Deveny, supra*, 139 Cal.App.4th at p. 425, citing *Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 145, 151.)

Plaintiffs' Complaint alleged that the gravamen of their claims was the failure to Defendants to disclose that the property was subject to two Pacifica ordinances: (1) the Short-Term Rental Ordinance ("STR law"), which demands compliance with multiple and strict city requirements before the residence can be rented through Airbnb, VRBO or similar; and (2) the Hillside Preservation Ordinance ("Hillside law"), a zoning overlay which likewise demands compliance with multiple and strict requirements before there can be virtually any physical alteration or improvement of a hillside slope. (Complaint, ¶ 2.) In their FAC, Plaintiffs now allege that the gravamen is that Defendants did not disclose that the property did not conform to city design and construction requirements, nor had it been inspected for compliance, and therefore could not have been operated as an Airbnb. (FAC, ¶ 2.) Notably, Plaintiffs omit any references to the STR law and Hillside law, yet the FAC continues to allege that Defendants failed to disclose that the property was illegally being operated as an Airbnb. Further, Plaintiffs fail to identify what these "city design and construction requirements" are that they are claiming. Thus, the court agrees with Defendants that Plaintiffs appear to have intentionally omitted any reference to the STR law without explaining the reason for omitting such allegations. As such, the court reads into the FAC the allegations from the Complaint that Plaintiffs claims are claiming Defendants failed to disclose that the property did not comply with the STR law.

First Cause of Action for Breach of Contract and Second Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing

The Demurrer to the First and Second Cause of Action are SUSTAINED WITH LEAVE TO AMEND based on failure to allege facts sufficient to support these claims.

The elements of a cause of action for breach of contract are: (1) existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damages to the plaintiff because of the breach. (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 402.) "A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect." (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 993.) To plead a contract by its legal effect, the plaintiff must allege the substance of its relevant terms. (*Ibid.*) This is more difficult because it requires a careful analysis of the instrument, comprehensiveness in statement and avoidance of legal conclusions. (*Ibid.*)

The FAC alleges that the contract is comprised of the published Multiple Listing for the property ("MLS Listing"), the Residential Purchase Agreement ("RPA"), the Transfer Disclosure Statement ("TDS") and the Seller Property Questionnaire ("SPQ"). (FAC, ¶ 11.) Plaintiffs do not attach a copy of these documents to the FAC or set out the terms verbatim in the FAC. Further, Plaintiffs' allegations are insufficient to plead the contract by its legal effect. (See FAC, ¶¶ 12, 13, 22.) Plaintiffs thus fail to allege facts sufficient to support this breach of contract claim.

The Second Cause of Action for breach of the implied covenant of good faith and fair dealing also fails. "If the allegations do not go beyond the statement of a mere contract breach, and relying on the same alleged acts, simply seek the same damages or other relief already claimed in

a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated.” (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395.) Defendants are correct that the allegations in this claim are duplicative of the breach of contract claim. Further, Plaintiffs must adequately plead a contract to allege this claim. (See *Innovative Business Partnerships, Inc. v. Inland Counties Regional Center, Inc.* (2011) 194 Cal.App.4th 623, 631 [a breach of implied covenant of good faith and fair dealing claim is premised on the breach of a specific contractual obligation]; see also *Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1032 . [“There is no obligation to deal fairly or in good faith absent an existing contract.”].)

Third Cause of Action for Breach of the Implied Warranty of Fitness for a Particular Purpose

The Demurrer to the Third Cause of Action is SUSTAINED WITH LEAVE TO AMEND based on failure to allege facts sufficient to support this cause of action.

Defendants demur to this cause of action on the ground that California courts have not extended such an implied warranty to non-commercial sales of real property, such as the sale of residential property here. Instead, the California Supreme Court extended this implied warranty only to apply to contracts for the construction and sale of newly constructed homes. (See *Pollard v. Saxe & Yolles Development Co.* (1974) 12 Cal.3d 374, 379-380.) Plaintiffs contend in response that *Pollard* is not limited to construction defects or builder-sellers.

The California Supreme Court in *Pollard* found that the laws historically governing sales of real property have developed along lines different from those governing sales of commercial goods. (*Pollard, supra*, 12 Cal.3d at p. 377.) “In the normal sale of land and buildings, courts have traditionally applied the doctrine of caveat emptor, with the buyer assuming the risk on quality—absent express warranty, fraud, or misrepresentation.” (*Ibid.*) In contrast, warranties of quality and fitness have been implied in the sale or furnishing of tangible chattels. (*Ibid.*) Nevertheless, the court found that an exception applied in finding that an implied warranty applies to builders and sellers of new construction. (*Id.* at pp. 379-380.)

Pollard therefore does not support that a cause of action for breach of implied warranty of fitness for a particular purpose applies to the facts in the FAC. The *Pollard* court recognized an exception that applied to builders and sellers of new construction to allow such a cause of action. Plaintiffs have not cited any other authority to support that they may bring this claim.

Fourth Cause of Action for Nondisclosure, Fifth Cause of Action for Intentional Misrepresentation, and Sixth Cause of Action for Fraudulent Concealment

The Demurrer to the Fourth, Fifth and Sixth Causes of Action is OVERRULED. Defendants have not established on the face of the FAC, or from matters of which the court may take judicial notice, that these causes of action are barred by the statute of limitations. The Fifth Cause of Action also alleges facts sufficient to support a misrepresentation with specificity.

For a demurrer to be sustained based on the statute of limitations, it must clearly and affirmatively appear on the face of the complaint that the action is barred. (*Citizens for a Responsible Caltrans Decision v. Department of Transportation* (2020) 46 Cal.App.5th 1103, 1116–1117.) The demurrer will be overruled when the relevant facts are not clear such that the cause of action might be, but is not necessarily time-barred. (*Id.* at p. 1117.)

Defendants have not shown that the Fourth, Fifth and Sixth Causes of Action are barred by the statute of limitations. The three-year statute of limitations for a fraud cause of action “is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338, subd. (d).) A cause of action generally accrues at the time when the cause of action is complete with all its elements. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) An exception to this general rule is the discovery rule, which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. (*Ibid.*) A plaintiff has reason to discover a cause of action when the person has reason to suspect a factual basis for its elements. (*Ibid.*)

Plaintiffs filed the Complaint on December 23, 2024. The FAC alleges that escrow closed on the property on December 31, 2021. (FAC, ¶ 11.) Nevertheless, Defendants claim that Plaintiffs had reason to discover the City of Pacifica’s STR law at least by the time they signed the purchase agreement on November 26, 2021 because Plaintiff intended to rent out the property as a short-term rental. However, it is not clear when Plaintiffs had reason to discover the STR law. In other words, the court cannot determine whether the statute of limitations started to run at the time they signed the purchase agreement, as Defendants contend, or when escrow closed, or even sometime later. These causes of action are not clearly time barred notwithstanding whether or not the discovery rule applies to these claims.

Defendants also demur to the Fifth Cause of Action on the basis that Plaintiffs fail to allege with specificity a misrepresentation. However, Plaintiffs sufficiently allege a misrepresentation based on the SPQ at Section 5-J. (FAC, ¶ 13.)

Seventh Cause of Action for Negligent Misrepresentation and Eighth Cause of Action for Negligence

The Demurrer to the Seventh and Eighth Causes of Action is SUSTAINED WITH LEAVE TO AMEND as barred by the statute of limitations.

The Seventh and Eighth Causes of Action are based on negligence, which is governed by a two-year statute of limitations. (Code Civ. Proc., § 335.1 [two year statute of limitations for negligence]; *E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App. 4th 1308, 1317 [cause of action for negligent misrepresentation is typically subject to a two-year limitations period].)

Defendants once again argue that these claims are barred by the statute of limitations because Plaintiffs reasonably could have discovered the existence of the STR law and its requirements at the time they entered into the agreement. Plaintiffs claim that they did not have reason to

discover these claims until after receiving a cease and desist order from the City of Pacifica in May 2023, and that they could not have reasonably made this discovery before then.

“A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.” (*E-Fab, supra*, 153 Cal.App.4th at p. 1319.) The plaintiff has the burden to show diligence, and conclusory allegations will not withstand demurrer. (*Ibid.*) Here, Plaintiffs make only a conclusory allegation that they had no reasonable basis for discovering by themselves that the property was being operated illegally for the purposes of Airbnb. (FAC, ¶ 15.) Plaintiffs failed to plead specific facts as to why they were unable to discover this earlier despite reasonable diligence. Thus, these causes of action appear to be barred by the statute of limitations. Plaintiffs are given leave to amend to plead specific facts to support that the discovery rule applies.

Defendants’ Request for Judicial Notice

Defendants’ Request for Judicial Notice is GRANTED to Exhibit A. (See Evid. Code, § 452, subd. (d).)

Defendants’ Request for Judicial Notice is GRANTED to Exhibits B and C. The court may properly take judicial notice of these municipal ordinances under Evidence Code section 452, subdivision (b). Although Plaintiffs object that Defendants incorrectly cite to section 452, subdivision (a), Plaintiffs acknowledge the correct subdivision and have not been prejudiced from this error. The court finds Plaintiffs’ remaining objections to these requests lack merit.

Leave to amend

Plaintiffs will have twenty days to file and serve a Second Amended Complaint, which runs from service of written notice of entry of order by Defendants. This extended time to amend is due in part to the pending Motion to Compel Arbitration and to Stay on calendar for July 31, 2026 which may affect whether or not an amendment is necessary.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

25-CIV-02821 BRENDON FARRELL VS. STEVE LEYDIKER, ET AL

BRENDON FARRELL
STEVE LEYDIKER

KURT E. WILSON
JOHN P GIRARDE

Defendant's Motion for Attorneys' Fees and Costs Pursuant to Code of Civil Procedure § 425.16(C)

TENTATIVE RULING:

Initially, the Court notes that Defendant has not provided the address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

The unopposed Motion for Attorney's Fees and Costs Pursuant to Code of Civil Procedure Section 425.16(c) (the "Motion"), brought by Defendant Steve Leydiker, is GRANTED.

Background

This Court has found that the Complaint alleges, without explanation and in a conclusory manner, that Defendant made unidentified false statements about Plaintiff to various individuals and entities, including the press. (Order Granting Defendant Steve Leydiker's Special Motion to Strike Plaintiff Brendon Farrell's Complaint, Etc., filed on November 5, 2025 (the "Order").) This Court granted Defendant's Special Motion to Strike (herein also called the "anti-SLAPP motion") in its entirety. (Order, 10:15.) Plaintiff appealed (Notice of Appeal, filed on December 22, 2025), and then filed an Abandonment of Appeal on February 9, 2026. The Court of Appeal dismissed the appeal for Appellant's failure to pay the required fee. (Remittitur, filed on May 27, 2026.)

Through his Motion for Attorney's Fees and Costs Pursuant to Code of Civil Procedure Section 425.16(c) (the "Motion"), Defendant seeks a mandatory award of attorney's fees of \$32,077.50 and costs of \$435.00, for the total amount of \$32,512.50, for having prevailed in his anti-SLAPP motion. (Code Civ. Proc., § 425.16, subd. (c)(1).)

Legal Analysis

A "prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (Code Civ. Proc., § 425.16(c)(1).) This award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The statute both discourages meritless lawsuits and compensates targets of SLAPP suits for the expense of defending their protected speech. (*Dove Audio, Inc. v. Rosenfeld, Meyer & Susman* (1996) 47 Cal.App.4th 777, 785; *Liu v. Moore* (1999) 69 Cal.App.4th 745, 750.) Because this Court granted Defendant's Anti SLAPP motion in full, he is the prevailing party and entitled to fees as a matter of law. (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 338.)

Attorney's fees awarded under § 425.16 include not only the time spent on the Anti SLAPP motion itself but also reasonable time spent preparing and defending the fee motion. (*Ketchum, supra*, 24 Cal.4th at p. 1141; *Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi* (2006) 141 Cal.App.4th 15, 21-22.)

California courts apply the “lodestar” approach to set fees under § 425.16(c): the number of hours reasonably expended multiplied by the reasonable hourly rate prevailing in the community for similar work. (*Ketchum, supra*, 24 Cal.4th at p. 1136.) The trial court may adjust the lodestar to reflect case complexity, skill displayed, and results achieved. (*Mann, supra*, 139 Cal.App.4th at p. 345.) The “reasonable market value of the attorney’s services is the measure of a reasonable hourly rate.” (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 640 fn. 31; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260.)

The Motion is timely. (Cal. Rules of Court, rule 3.1702(b)(1).)

Defendant prevailed on his anti-SLAPP motion. (Order, 10:15.) Thus, an award of his attorneys’ fees and costs is mandatory. (Code Civ. Proc., § 425.16, subd. (c)(1).) Further:

an award of fees may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16. [A]bsent circumstances rendering the award unjust, fees recoverable ... ordinarily include compensation for all hours reasonably spent, including those necessary to establish and defend the fee claim.

(*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1141 (*Ketchum*) (internal quotation and citation omitted).)

As to the level of detail of the time spent as set forth in Defendant’s counsel’s declaration (Girarde Decl., ¶¶ 5, 7, & 9), the Court of Appeal explains that, “Because time records are not required under California law ..., there is no required level of detail that counsel must achieve.” (*Syers Props. III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 699 (*Syers*) (citation omitted).) In *Syers*, each of the billing attorney’s declarations under penalty of perjury:

summarized his hours billed to defendants within several specific litigation categories, including the total hours spent in: “Fact investigation and general conferences and correspondence”; “Development of case analysis and strategy”; “Legal research”; “Expert and/or consultant work”; “Status reports to client and carrier”; “Draft pleadings and papers, and other case assessment and development”; “Settlement discussions and mediation”; “Written and document discovery”; “Party, percipient and expert depositions”; “Trial preparation and support, including witnesses and exhibit preparation and examinations”; “Trial motions and submissions”; “Court appearances, including trial”; and “Attorneys’ fee motion.”

(*Syers, supra*, 226 Cal.App.4th 691, 694-95.) These categories resemble those of the Girarde Declaration. Further, the *Syers* Court noted that:

The type of categorical breakout of time expended by each attorney and paralegal provided here has been specifically lauded by Hon. Vaughn Walker, former Chief

Judge of the United States District Court for the Northern District of California, as “an especially helpful compromise between reporting hours in the aggregate (which is easy to review, but lacks informative detail) and generating a complete line-by-line billing report (which offers great detail, but tends to obscure the forest for the trees).”

(*Syers, supra*, 226 Cal.App.4th 691, 700.)

Further, in affirming the trial Court’s award based on declarations under penalty of perjury, the *Syers* Court considered that, “Most importantly, the trial judge presided over the entire matter and was well able to evaluate whether the time expended by counsel in this case, given its complexity and other factors, was reasonable.” (*Syers, supra*, 226 Cal.App.4th 691, 700.) Here, while the instant case was initially assigned to Judge Finigan, the trial judge who presided over the anti-SLAPP motion itself and its litigation since then has been Judge Mau. Thus, the institutional memory of the details of the pertinent litigation is available to the Court.

The Court finds the billing rate of \$525.00 per hour for Mr. Girarde to be reasonable, as well as his time spent, and the costs claimed. The motion is thus GRANTED in full for an award of attorney’s fees of \$32,077.50 and costs of \$435.00 against Plaintiff.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-02823 BRENDON FARRELL VS. ARA JABAGCHOURIAN

BRENDON FARRELL
ARA JABAGCHOURIAN

KURT E. WILSON
STEVE LEYDIKER

Defendant's Motion for Attorneys' Fees and Costs Pursuant to Code of Civil Procedure § 425.16(C)

TENTATIVE RULING:

Defendant Ara Jabagchourian has moved for attorney's fees and costs incurred in his successful Special Motion to Strike (Anti-SLAPP) in this matter and for attorney's fees for the instant fee motion.

Plaintiff Brendon Farrell has not opposed this motion.

Defendant's unopposed Motion for Attorney's Fees and Costs is tentatively GRANTED, in the amount of \$38,311.50, conditioned upon Defendant e-filing prior to the hearing a proof of service reflecting that this motion was timely served. If Defendant is unable to submit a proper proof of service, then the tentative ruling will be to DENY for lack of service. California Rules of Court, rule 3.1300(c).

Background

On April 24, 2025, Plaintiff filed a Complaint alleging defamation, false light, and related claims against Defendant. On June 4, 2025, Defendant filed an Anti-SLAPP motion seeking to strike the Plaintiff's Complaint. On October 28, 2025, this Court granted Defendant's Anti-SLAPP motion, striking Plaintiff's Complaint in its entirety.

On November 20, 2025, Plaintiff filed a Motion for Reconsideration of the Court's order granting Defendant's Anti-SLAPP motion. On December 22, 2025, Plaintiff filed a Notice of Appeal of the Court's order on the Anti-SLAPP motion. Plaintiff then withdrew his Motion for Reconsideration on December 23, 2025. However, Plaintiff's appeal was never heard. On February 9, 2026, Plaintiff filed an Abandonment of Appeal. And on March 5, 2026, the First Appellate District of the Court of Appeal issued a Remittitur dismissing Plaintiff's appeal for failure to pay the statutory fee required by California Rules of Court, rule 8.100(b)(1) and failure to file a Civil Case Information Statement after notice was given by appellate court clerk.

Legal Analysis

A “prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney’s fees and costs.” (Code Civ. Proc., § 425.16(c)(1).) This award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The statute both discourages meritless lawsuits and compensates targets of SLAPP suits for the expense of defending their protected speech. (*Dove Audio, Inc. v. Rosenfeld, Meyer & Susman* (1996) 47 Cal.App.4th 777, 785; *Liu v. Moore* (1999) 69 Cal.App.4th 745, 750.) Because this Court granted Defendant’s Anti SLAPP motion in full, he is the prevailing party and entitled to fees as a matter of law. (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 338.)

Attorney’s fees awarded under § 425.16 include not only the time spent on the Anti SLAPP motion itself but also reasonable time spent preparing and defending the fee motion. (*Ketchum, supra*, 24 Cal.4th at p. 1141; *Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi* (2006) 141 Cal.App.4th 15, 21-22.)

California courts apply the “lodestar” approach to set fees under § 425.16(c): the number of hours reasonably expended multiplied by the reasonable hourly rate prevailing in the community for similar work. (*Ketchum, supra*, 24 Cal.4th at p. 1136.) The trial court may adjust the lodestar to reflect case complexity, skill displayed, and results achieved. (*Mann, supra*, 139 Cal.App.4th at p. 345.) The “reasonable market value of the attorney’s services is the measure of a reasonable hourly rate.” (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 640 fn. 31; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260.)

Defendant’s request for attorney’s fees includes fees for 68.2 hours of work performed on the Anti-SLAPP motion, broken down as follows:

- 3.2 hours: Multiple conferences with client and co-counsel regarding background facts, strategy, and procedural posture;
 - 2.6 hours: Review and analysis of Complaint and supporting exhibits to determine applicability of the anti-SLAPP statute;
 - 4.8 hours: Legal research regarding first and second prong SLAPP standards, litigation privilege (Civ. Code §47(b)), and case law interpreting public interest speech;
 - 12.6 hours: Review of trial transcripts in *Zhang v. Farrell* and preparation of detailed comparative chart analyzing statements published in the San Mateo Daily Journal and those made during trial, demonstrating the overlap and protected nature of the speech at issue;
 - 20.3 hours: Drafting and revising Memorandum of Points and Authorities in support of anti SLAPP Motion;
 - 2.1 hours: Preparation and revision of supporting declarations and exhibits;
 - 3.4 hours: Preparation of Request for Judicial Notice and compilation of supporting materials;
 - 1.1 hours: Drafting and editing Notice of Motion and related pleadings;
 - 1.5 hours: Review and analysis of Plaintiffs’ Opposition to anti-SLAPP Motion;
 - 14.7 hours: Drafting and revising Reply Memorandum in support of anti-SLAPP Motion, including factual clarifications and supplemental authority;
-

1.0 hours: Review of tentative ruling and preparation for oral argument; and
0.9 hours: Attendance at and presentation of oral argument before the Court.

(Leydiker Decl., ¶¶ 4, 5.)

Defendant's request for attorney's fees includes fees for 7.1 hours for work performed on the instant fee motion, broken down as follows:

2.2 hours: Review of billing records, compilation of time entries, and preparation of supporting declarations; and
4.9 hours: Legal research and drafting of Memorandum of Points and Authorities in support of Motion for Attorneys' Fees and Costs.

(Leydiker Decl., ¶¶ 5, 6.) Defendant's counsel further anticipates 10.0 hours to review any opposition by Plaintiff and draft a reply. (Leydiker Decl., ¶ 6.)

As to the level of detail of the time spent as set forth in Defendant's counsel's declaration (Leydiker Decl., ¶¶ 4, 5 & 6), the Court of Appeal explains that, "Because time records are not required under California law ..., there is no required level of detail that counsel must achieve." (*Syers Props. III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 699 (*Syers*) (citation omitted).) In *Syers*, each of the billing attorney's declarations under penalty of perjury:

summarized his hours billed to defendants within several specific litigation categories, including the total hours spent in: "Fact investigation and general conferences and correspondence"; "Development of case analysis and strategy"; "Legal research"; "Expert and/or consultant work"; "Status reports to client and carrier"; "Draft pleadings and papers, and other case assessment and development"; "Settlement discussions and mediation"; "Written and document discovery"; "Party, percipient and expert depositions"; "Trial preparation and support, including witnesses and exhibit preparation and examinations"; "Trial motions and submissions"; "Court appearances, including trial"; and "Attorneys' fee motion."

(*Syers, supra*, 226 Cal.App.4th 691, 694-95.) These categories resemble those of the Leydiker Declaration.

The Court finds Defendant's request for 68.2 hours of work on the Anti-SLAPP motion and 7.1 hours of work on the instant fee motion to be reasonable. Because this motion is unopposed, the Court declines to include the 10 additional hours estimated by Defendant's counsel to reply here, despite that Defendant filed a notice of non-opposition and reply.

Defense counsel's hourly rate is \$500.00 per hour. (Leydiker Decl., ¶ 2.) Counsel declares that he has been practicing law in California since 2011, with a focus on civil litigation, including complex trust and estate disputes and related motion practice, and his experience also includes handling multiple Anti-SLAPP motions and other dispositive matters in both trial and appellate courts. (*Ibid.*) The Court finds Counsel's rate of \$500.00 per hour to be reasonable for an attorney of his experience and for the work performed.

Defendant also incurred costs totaling \$661.50, which include first appearance fees, filing fees for the Anti-SLAPP motion and supporting papers, and filing fees for the Reply and related documents. (Leydiker Decl., ¶ 8.) The Court finds these costs to be reasonable.

Accordingly, the Court tentatively GRANTS Defendant's Motion for Attorney's Fees and Costs, in the amount of \$37,650.00 in attorney's fees (73.5 hours at \$500.00 per hour) and \$661.50 in costs – for a total award of **\$38,311.50**, conditioned upon Defendant e-filing prior to the hearing a proof of service reflecting that this motion was timely served. A courtesy copy of said proof of service should also be sent directly via email to Dept. 20, in the afternoon or evening on the date of when this tentative is posted, i.e. before the hearing.

Considering the above, counsel is directed to appear and this tentative ruling is deemed contested without further notice. The tentative ruling as modified at the hearing, will require an Order after hearing pursuant to CRC Rule 3.1312 as the Court will direct at the hearing.

9:00 AM

Line 6

25-CIV-02842 JON ROMERO, ET AL VS. NORTH CAL SECURITY INC., ET AL

JON ROMERO
NORTH CAL SECURITY INC.

JOSHUA I WHITE
ADOLFO MEDIANO

Defendants' Motion to Quash Service of Summons; Motion to Set Aside Clerk's Default and Default Judgment, Request for Sanctions

TENTATIVE RULING:

Defendants North Cal Security, Inc.'s and Dennis R. Mediano, Sr.'s Motion to Quash Service of Summons and Motion to Set Aside Clerk's Default and Default Judgment is GRANTED in part and DENIED in part.

Defendants North Cal Security, Inc.'s and Dennis R. Mediano, Sr.'s Request for Judicial Notice is GRANTED.

As a preliminary matter, Defendants North Cal Security, Inc. and Dennis R. Mediano, Sr. have failed to electronically bookmark the exhibits submitted in support of the motion, in violation of the California Rules of Court. (See Cal. Rules of Court, rule 3.1110(f)(4).) All parties are advised that further violations of the California Rules of Court are subject to sanction. (See *id.*, at rule 2.30.)

On September 12, 2025, the clerk entered the defaults of Defendants North Cal Security, Inc. ("North Cal") and Dennis R. Mediano, Sr. The default judgment against them was subsequently entered on February 10, 2026. Here, North Cal and Mediano seek to set aside the defaults and default judgment on the grounds that they are void for lack of jurisdiction. (See Code Civ. Proc., § 473, subd. (d) ["court ... may, on motion of either party after notice to the other party, set aside any void judgment or order"].) They further seek to quash the service of the summons upon them.

A court does not gain jurisdiction over a defendant by mere notice but by proper service of the summons and complaint. (*Independent Bankers Trust Co. v. Superior Court* (1982) 138 Cal.App.3d 238, 241.) Proper service means "compliance with the statutes governing service of process," and it is "essential to establish that court's personal jurisdiction over a defendant." (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1439.) "Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (*Id.*, at p. 1444.)

North Cal and Mediano contend that the Court lacked personal jurisdiction over them because the purported substituted service of process on them was defective in two respects: (1) the copies of the summonses served did not specify who in particular was being served nor the capacity in which the person was being served and (2) the papers were not mailed to the business address of North Cal's agent for service of process.

Though North Cal and Medino do not provide any authority for the proposition, a summons in an action against a corporation indeed must notify the person being served in what capacity they are being served, else no default may be taken. (Code Civ. Proc., § 412.30.) However, the only evidence offered in support of their first argument—that the copies of the summons served on North Cal and Mediano were not completely filled out—is an unauthenticated and undescribed copy of the summons attached as an exhibit to the motion with an annotation indicating the purported deficiency. (Apr. 9, 2026 Motion, p. 7.) However, it seems this cannot be either of the copies actually served on North Cal and Mediano—both North Cal and Mediano disclaim having ever received a summons in this action. (*Id.*, at p. 3, ¶ 8, p. 4, ¶ 7.) Instead, it appears to be a copy of the original summons from the Court’s file. The bottom portion of the original summons is always left blank by default. It is to be filled in by the person effecting service at the time of service.

Furthermore, the proofs of service of the summons indicate the required notice on the summonses were in fact filled out upon service. (See May 20, 2025 Proof of Service (North Cal), § 6; May 20, 2025 Proof of Service (Mediano), § 6.) Because North Cal and Mediano disclaim having received these summonses, they have no personal knowledge of the content of the summonses served and cannot rebut these proofs. Accordingly, their first argument is without merit.

Their second argument, however, despite consisting of single sentence in their memorandum of points and authorities, is more sound at least in relation to the service on North Cal. Plaintiff Jon Romero attempted to serve North Cal via its agent designated for service of process, relying on Code of Civil Procedure section 416.10, which so permits service upon the agent. (See May 20, 2025 Proof of Service (North Cal), § 6.) He did so despite the fact that North Cal had been dissolved half a year earlier. (Motion, p. 19; see Code Civ. Proc., § 416.20 [governing who may be served on behalf of a defunct corporation].) North Cal nevertheless does not dispute that the designated agent was a proper person to receive service on its behalf.

However, to properly serve North Cal’s designated agent by substitute service, Romero was required to “leav[e] a copy of the summons and complaint during usual office hours in the [agent’s] office” and “thereafter mail[] a copy of the summons and complaint by first-class mail, postage prepaid to the [agent] at the place where a copy of the summons and complaint were left.” (Code Civ. Proc., § 415.20, subd. (a).) North Cal’s agent’s office has been and continues to be located at 1420 Riviera Avenue in Banning, California, since 2020. (Motion, p. 2 ¶¶ 2–3, 6–7, p. 18.) Thus, the stated service purportedly upon the designated agent at 7 Wilms Avenue in South San Francisco was improper.

Romero argues that the South San Francisco address was ‘properly connected’ to North Cal and not an ‘unrelated’ address because it was North Cal’s place of business. This argument is frivolous in relation to the type of service claimed—the statutes are clear that if the designated agent is to be served, then service is to be made at the agent’s office, not the address of the corporation. While the statutes providing for substitute service in lieu of personal delivery are to be “liberally construed to effectuate service and uphold jurisdiction if actual notice has been received by the defendant” (*Bein v. Brechtel–Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387, 1392), service upon an address other than the designated agent’s does not substantially comply with the statute requiring service at the agent’s office. A ‘connected’ or ‘related’ address does not qualify. Accordingly, the Court never obtained personal jurisdiction over North Cal, the entry of North’s Cal default and the default judgment against it are void, and service of the summons upon North Cal must be quashed.

While Dennis Mediano’s declaration states that he never received the summons or complaint, the motion contains no argument or legal authority that relief should be granted as to him for lack of notice or for

surprise. Accordingly, the Court is not considering such grounds. Even if it did, the evidence is insufficient to grant such relief. There is not a sufficient showing that service was invalid. While substituted service must be on a member of an individual's household, there is no evidence that the young male with whom the papers were left is not part of Dennis Mediano's household, and in fact the moving parties indicate he was. The claim that Dennis Mediano never saw the subsequent mailings, does not render the original service ineffective. Finally, for lack of notice grounds, Dennis Mediano is required to show that he was not avoiding service, which his declaration does not address or establish.

For the foregoing reasons, the motion is GRANTED with respect to North Cal and DENIED with respect to Mediano.

The request for sanctions is DENIED. Among other numerous defects, the motion does not state—either in the notice or elsewhere—what type of sanctions (though presumably monetary) are sought nor against whom they are sought nor on what legal basis they may be imposed. Accordingly, the imposition of sanctions would not satisfy due process. (See, e.g., *Barrientos v. City of Los Angeles* (1994) 30 Cal.App.4th 63, 70–71.)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

25-CIV-05547 TRIPATINDER CHOWDHRY VS. BRADLEY J. LUCAS, ET AL

TRIPATINDER CHOWDHRY
BRADLEY J. LUCAS

DAVID G. FINKELSTEIN
ELIZABETH M. PAPPY

Defendants' (Amended) Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

For the reasons stated below, Defendants Bradley Lucas and Melanie Lucas ("the Lucas defendants") demurrer to Plaintiff Tripatinder Chowdhry's ("Plaintiff" or "Mr. Chowdhry") Jan. 27, 2026 First Amended Complaint ("FAC") is SUSTAINED-in-part and OVERRULED-in-part. (Code Civ. Proc. § 430.10(c), (e).)

Defendants' Jan. 27, 2026 Request for Judicial Notice (RJN) is GRANTED. (Evid. Code § 452(c)-(d).) As to court-filed and recorded documents, the Court takes judicial notice of their contents and filing/recording dates, but does not take judicial notice of the truth of statements/allegations in the documents.

Defective meet and confer.

This Court previous found that the Lucas defendants failed to properly meet and confer before filing their previous demurrer back in 2025. (See Dec. 21, 2025 Minute Order.) Defendants once again have not complied with Code Civ. Proc. § 430.41.

The Jan. 27, 2026 declaration of defendants' counsel Rob Keitamo states that on Jan. 11, 2026, the attorneys exchanged a *draft* FAC, then spoke by phone about the draft FAC on Dec. 15, 2025, and that on Dec. 26, 2026, Plaintiff filed a FAC that differed from the version the attorneys had previously discussed on the telephone. On Jan. 7, 2026, defendants' counsel sent to Plaintiff's counsel an email stating that defendants intended to demur to the FAC "unless [Plaintiff's counsel] wished to meet and confer further." On Jan. 8, 2026, Plaintiff's counsel responded by email, stating there was nothing further to discuss ..." (Jan. 27, 2026 Keitamo Decl., ¶¶ 3-7.)

The Keitamo declaration indicates that (1) the attorneys never spoke to each other regarding the version of the FAC that Plaintiff filed on Dec. 26, 2026; and (2) they never spoke about the demurrer after the FAC was actually filed. § 430.41 requires the attorneys to speak, or at least, to make a genuine attempt to speak to each other, and discuss the planned to demurrer to the pleading, *after* it is filed. The fact that the Dec. 26, 2026 FAC differed from the prior version (that was exchanged on Dec. 11) was even more reason that the attorneys should have spoken

after the filing date. Merely exchanging emails (on Jan. 7-8) does not comply with § 430.41.

Further, § 430.41 states, in part:

As part of the meet and confer process, the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. The party who filed the complaint, ... shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint, ... could be amended to cure any legal insufficiency.

(§ 430.41(a)(1).) The Keitamo declaration provides no indication that, during the attorneys' Dec. 15 telephone discussion, defense counsel identified any legal support for the claimed deficiencies in the FAC, nor that Plaintiff's counsel identified "legal support for its position that the pleading is legally sufficient."

Additionally, based on the Keitamo declaration, it appears that during the attorneys' Dec. 15 telephone discussion, they only discussed the res judicata defense. But the demurrer to the FAC includes several arguments that have nothing to do with res judicata. It is unclear whether *any* of these other arguments were ever discussed by the attorneys.

Evidence has shown that when attorneys actually speak about the issues to be raised in a demurrer, and exchange their legal authority supporting their positions, the chances of them either resolving their dispute entirely, or narrowing it, improve significantly. When they don't do so, they often end up forcing the court to expend time and resources on matters that could have been resolved without court intervention.

In its discretion, the Court has decided to proceed to rule on the demurrer's merit, but the Court advises the parties to strictly comply with meet and confer requirements going forward, and that the Court may issue sanctions for future violations/non-compliance.

Background.

This case arises from a dispute between Plaintiff Chowdhry and the Lucas defendants over Mr. Chowdhry's claimed easement rights to a piece of land ("the Hermosa Avenue Segment") that lies between 655 Miramar Drive (which is owned by TEG Partners, LLC and leased by Chowdhry) and 681 Hermosa Avenue, which is owed by the Lucas defendants. The Hermosa Avenue Segment appears to lie on the border of Half Moon Bay and an unincorporated area of San Mateo County. Mr. Chowdhry owns property located at 18 Terrace Avenue, which is near, but does not adjoin, the Hermosa Avenue Segment. Mr. Chowdhry also allegedly leases part of the TEG Partners, LLC's property at 655 Miramar Drive, which adjoins the Hermosa Avenue Segment.

Mr. Chowdhry, TEG Partners, LLC, and a third individual previously sued the Lucas defendants' predecessor-in-interest, Erica Steiner, in a case entitled *Tripatinder Chowdhry, et al. v. Erica Steiner, et al.*, Case No. 18CIV01684 (the "Steiner Action"), which resulted in a 2020 judgment.

That 2020 judgment awarded plaintiffs Chowdhry and TEG an ingress/egress easement over the Hermosa Avenue Segment.

There is also a currently-pending lawsuit, captioned *TEG Partners, LLC v. Brad J. Lucas, et al.*, Case No. 23CIV02308 (the “TEG Action”), involving similar parties and claims, and involving the same disputed piece of land (the Hermosa Avenue Segment).

Mr. Chowdhry’s FAC in this case alleges that the Lucas defendants have obstructed/violated his ingress/egress easement rights as previously awarded in the Steiner litigation, and he seeks to establish, or seeks recognition of, claimed easements rights to use the Hermosa Avenue Segment in various ways, which he alleges are part and parcel, and reasonably included, with his right of ingress and egress.

Mr. Chowdhry’s FAC, filed Dec. 26, 2025, asserts the following causes of action:

1. Declaratory Relief - Easement by 1907 Subdivision Map;
2. Private Nuisance;
3. Public Nuisance;
4. Declaratory Relief – Easement by 2020 Judgment;
5. Quiet title-Prescriptive Easement.

The Lucas defendants demur to the First, Fourth, and Fifth Causes of Action, on several grounds.

Legal standard.

A demurrer is used to challenge defects that appear on the face of the pleading, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer assumes that all facts pleaded in the complaint are true, no matter how improbable. (*Serrano v. Priest* (1971) 5 Cal. 3d 584, 591.) In ruling on a demurrer, the court construes the complaint liberally with a view of substantial justice between the parties. (Code Civ. Proc. Sect. 452; *Cameron v. Wernick* (1967) 251 Cal.App.2d 890.)

First Cause of Action

As to the First Cause of Action (“Declaratory Relief - Easement by 1907 Subdivision Map”, the demurrer is SUSTAINED, because this claim is barred by res judicata/claim preclusion.

The doctrine of claim preclusion prevents re-litigation of the same cause of action between the same parties or parties in privity where there has been a final judgment on the merits. (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 896–897.) Claim preclusion applies when: (1) the prior proceeding resulted in a final judgment on the merits; (2) the present action involves the same cause of action; and (3) the parties or their privies are the same in both actions. (*SLPR, L.L.C. v. San Diego Unified Port District* (2020) 49 Cal.App.5th 284, 298.)

Claim preclusion applies not only to issues actually litigated, but also to matters that could have been litigated in the prior proceeding. (*Mycogen Corp.*, *supra*, 28 Cal.4th at p. 897.) Thus, the doctrine prohibits claim splitting and requires that all claims based on the same primary right be litigated in a single action.

A judgment entered pursuant to stipulation constitutes a final judgment on the merits for purposes of claim preclusion. (*De Weese v. Unick* (1980) 102 Cal.App.3d 100, 105; *Louie v. BFS Retail & Commercial Operations, LLC* (2009) 178 Cal.App.4th 1544, 1555.)

In the prior lawsuit captioned *Singh et al. v. Erica Steiner et al.*, San Mateo Superior Court Case No. 18-CIV-01684 (“Steiner Litigation”) (RJN, Ex. A), Mr. Chowdhry, Tejinder Singh, and TEG Partners, LLC sued the Lucas defendants’ predecessor-in-interest Erica Steiner (Steiner appears to be the previous owner of the Lucas’ defendants’ parcel). The Steiner case, as with the present case, involved a dispute over Mr. Chowdhry’s and TEG Partners, Inc.’s claimed easement rights over the same disputed piece of land—the “Hermosa Avenue Segment.” In the Steiner case, Mr. Chowdhry and TEG were represented by the same law, Finkelstein & Fujii LLP, that represents Mr. Chowdhry in this case.

Mr. Chowdhry’s and TEG’s Sept. 13, 2018 Second Amended Complaint in the Steiner case asserted causes of action for (1) declaratory relief; (2) quiet title; (3) prescriptive easement; and (4) utility easement. The plaintiffs in the Steiner case dismissed their Third and Fourth Causes of Action. Mr. Chowdhry and TEG Partners, LLC ultimately prevailed on their First and Second Causes of Action (declaratory relief and quiet title) when the Court entered a default judgment on those two claims. The Steiner court entered a 2020 judgment declaring that Mr. Chowdhry and TEG Partners, LLC have easement rights over the “Hermosa Avenue Segment” for ingress and egress. (Jan. 23, 2020 Judgment in Case No. 18-CIV-01684.)

In the Steiner lawsuit, Mr. Chowdhry and TEG Partners, LLC claimed, in part, that based on Mr. Chowdhry’s ownership of 18 Terrace Avenue, Half Moon Bay, and based on Mr. Chowdhry’s ownership (at that time) of TEG Partners, LLC, which in turn owns property at 655 Miramar Drive, which adjoins the Hermosa Avenue Segment, Mr. Chowdhry and TEG Partners, LLC both have ingress/egress easements rights over the Hermosa Avenue Segment.

In the Steiner case, Mr. Chowdhry and TEG Partners, LLC based their easement claims/arguments, in part, on a 1907 subdivision map. Mr. Chowdhry’s and TEG Partners, LLC’s Second Amended Complaint alleged the following:

14. In 1907, HALF MOON BAY published a Map of Subdivision of Block 10 Miramar Terrace, that includes Hermosa Avenue, a section of which later evolved into a paper street. (See a copy of the 1907 Subdivision attached as Exhibit “D.”) The Map includes the following language, wherein HALF MOON BAY protects the rights of abutting property owners for ingress and egress on the streets listed in the Map: “[i]t (Half Moon Bay Development Co.) does not intend by the making, mapping and platting of said lands as shown hereon to dedicate to the public or to public use any of the streets, avenues or highways delineated on this map, and it does hereby expressly declare that none of the

streets, avenues or highways designated and shown hereon are in any manner, or for any purpose dedicated to the public or to public use, all purchasers of any block or lot or other parcel of land shown hereon shall have such right of way for ingress or egress over said streets, avenues and highways as may be necessary to the full enjoyment of the lands so purchased subject to such reasonable restrictions as said corporation owner may deem admissible.” (Emphasis added.)

15. Therefore, while HALF MOON BAY did not publicly dedicate any of the “streets, avenues or highways” to the public, it did ensure that “all purchasers of any block or lot or other parcel of land. . . have such right of way for ingress or egress over said streets.” Based on the MAP, PLAINTIFFS have a right of ingress and egress based on ownership of both their PRIMARY and SECONDARY PROPERTY, and not only as abutting property owners of the SECONDARY PROPERTY which abuts the STEINER PARCEL on the paper street located within this subdivision.

Mr. Chowdhry’s First Cause of Action in the present case, for “Declaratory Relief - Easement by 1907 Subdivision Map,” is therefore barred by res judicata. There is no dispute here that the Steiner case resulted in a final judgment on the merits. Nor does Mr. Chowdhry appear to dispute that that Steiner case involved the “same parties or parties in privity,” because the Lucas defendants purchased their property from Erica Steiner. As such, the elements of res judicata are met. Mr. Chowdhry’s current claim for “Declaratory Relief - Easement by 1907 Subdivision Map” not only could have been litigated in the Steiner case, it was litigated in that case, and it was adjudicated.

Fourth Cause of Action

As to the Fourth Cause of Action (“Declaratory Relief – Easement by 2020 Judgment”), the demurrer is OVERRULED. Unlike the First Cause of Action, this cause of action, at least in part, does not seek to establish easement rights, but instead, it seeks clarification regarding the scope of Chowdhry’s existing rights in light of new alleged acts of interference with his easement rights by the Lucas defendants.

The FAC alleges that the Lucas defendants have placed barriers and otherwise obstructed Mr. Chowdhry’s (and emergency vehicles’) access over the easement. (FAC, ¶ 78.) Among other things, this cause of action seeks a declaration/determination that Mr. Chowdhry has a “vehicular right of ingress and egress” to the Hermosa Avenue Segment (¶ 79), “the right to improve and pave [it] for safe and reasonable access ... as well as for fire safety and access to ingress and egress in the event of a fire or other natural disaster...” (¶ 80.) Mr. Chowdhry also claims entitlement to walk and jog on the Hermosa Avenue Segment, to drive and park vehicles on it, to pave it, and to install utilities on it. (FAC, ¶ 38.) The Lucas defendants argue that such uses improperly go beyond “ingress and egress,” and therefore are not permitted. (See Dem. at 4 [“Chowdhry seeks to expand his easement rights to include activities other than ingress and egress.”])

The Steiner judgment itself does not define or explain the scope of Mr. Chowdhry's granted ingress and egress rights, and the parties disagree on the meaning/reasonable scope of the term "ingress and egress." (See, e.g., Dem. at 5 [the Lucas defendants arguing: "There is no reasonable reading of the Hermosa Judgment to include paving of a roadway, the installation of utilities, or the right to stand or walk around ..."]]) Defendants also appear to disagree that the right of ingress and egress permits Chowdhry to come and go in a vehicle. See Reply at 3:

Access for motor vehicles is not mentioned in the Hermosa [Steiner] Judgment. (FAC, Ex. 7.) There is no reference granting Chowdhry any right to be present on the Lucas' family property for reasons other than ingress and egress. (Id.) There is no viable argument that such an expansive easement right can be inferred from the text of the Hermosa [Steiner] Judgment.

(Reply at 3.)

A demurrer is not the proper vehicle to eliminate portions of a cause of action. Therefore, the fact that some of Mr. Chowdhry's claimed easements rights may be barred by res judicata, or may be otherwise impermissible, does not necessarily defeat the Fourth Cause of Action on demurrer, because a demurrer does not lie to attack only parts of an otherwise sufficient cause of action. Even if the Court were to conclude, for example, that Mr. Chowdhry's ingress and egress rights do not permit him to install utilities on the roadway, or that such a request is barred by res judicata, that requested relief does not render the entire cause of action subject to demurrer. Instead, the cause of action survives demurrer so long as it alleges an actual controversy regarding at least one issue that is appropriate for judicial relief.

At least in part, the Fourth Cause of Action does not seek to relitigate the issues raised, or that could have been raised, in the Steiner case. At least in part, it seeks clarity via declaratory relief, as to the scope of Mr. Chowdhry's "ingress and egress" easement rights, in light of the new alleged interference with his easement rights by the Lucas defendants. In part, this claim concerns post-judgment conduct, and a dispute regarding the reasonable scope of an established easement, not the existence of the ingress/egress easement itself. Thus, the demurrer to this cause of action is not well taken.

Citing to the pending case of *TEG Partners, LLC v. Brad J. Lucas, et al.*, 23CIV02308, defendants also argue that the First, Fourth, and Fifth Causes of Action are subject to demurrer because "[t]here is another action pending between the same parties on the same cause of action." (Code Civ. Proc. § 430.10(c).) Defendants do not show that these cases involve the same parties.

Chowdhry is not a named party to the TEG case (23CIV02308), and TEG is not a named party in the present case (25CIV05547). LLCs are generally considered separate entities, separate and apart from their members/principals. Defendants cite no authority stating/holding that, for purposes of applying Code Civ. Proc. § 430.10(c), an LLC's member(s) or principals and the LLC itself can be treated as one and the same. And even an LLC's member/owner can be treated as the same "party" as the LLC, or in "privity" with the LLC, defendants cite to no evidence subject to judicial notice establishing that Mr. Chowdhry currently holds any interest in TEG

Partners, LLC. In fact, defendants appear to concede, or at least suggest, that Mr. Chowdhry has no current ownership interest in TEG Partners, LLC. (See Dem. at 11 [“Chowdhry *was* a part owner of TEG during the Steiner Litigation TEG—an entity in which Chowdhry *once held* an ownership interest ...”]) Because defendant have not shown that the two cases involve “the same parties,” defendants have not shown that § 430.10(c) bars any of the claims asserted in this case.

Accordingly, the demurrer to the Fourth Cause of Action is overruled.

Fifth Cause of Action

As to the Fifth Cause of Action (“Quiet Title - Prescriptive Easement over Hermosa Avenue Segment”), the demurrer is OVERRULED. Plaintiff’s FAC alleges, in the alternative, that in the event this Court finds that Mr. Chowdhry’s existing ingress/egress easement does not authorize him to use the roadway for walking and hiking, he nonetheless has obtained rights to walk and hike on the Hermosa Avenue Segment via prescriptive easement through adverse use, in the time period *after* issuance of the 2020 Steiner judgment. Litigants are generally permitted to plead in the alternative in this manner, and defendants cite no authority suggesting that such alternative pleading is not permissible.

Defendants’ res judicata argument lacks merit, because this alternative prescriptive easement claim appears to be based on alleged adverse use during the past five plus years—in other words, in the time period *after* issuance of the 2020 Steiner judgment. See CACI 4901 [Prescriptive Easement], stating:

[*plaintiff*] claims that [he] is entitled to a nonexclusive use of [*defendant*]’s property for the purpose of [*describe use*]. This right is called a prescriptive easement. In order to establish a prescriptive easement, [*plaintiff*] must prove that for a period of five years all of the following were true:

1. That [*plaintiff*] has been using [*defendant*]’s property for the purpose of [*describe use*];
2. That [*plaintiff*]’s use of the property was continuous and uninterrupted;
3. That [*plaintiff*]’s use of [*defendant*]’s property was open and easily observable, or was under circumstances that would give reasonable notice to [*name of defendant*]; and
4. That [*plaintiff*] did not have [*defendant*]’s permission to use the land.

The FAC alleges that Mr. Chowdhry openly and continuously used the Hermosa Avenue Segment for walking and hiking over a period exceeding five years, continuing up to the filing of the present lawsuit. Because this claim is based on actions after issuance of the Steiner judgment, it was not and could not have been litigated in the Steiner case.

Defendants also argue that Mr. Chowdhry could not have obtained any additional rights to the Hermosa Avenue Segment by prescriptive easement after entry of the 2020 Steiner judgment, because he already had an ingress/egress easement. But the holder of an ingress/egress easement presumably can acquire additional prescriptive rights beyond the scope of an existing easement, provided the elements of prescription are independently established. Here, Mr. Chowdhry alleges

that if the Court determines/declares that the ingress/egress easement is narrower in scope and does not grant him the right to “walk and hike on the Hermosa Avenue Segment,” then alternatively, he acquired the right to do so by walking and hiking on the Hermosa Avenue Segment, in an open and hostile manner, after issuance of the Steiner judgment. Defendants cite no authority precluding Chowdhry from acquiring additional rights through prescription after the issuance of the 2020 Steiner judgment.

Lastly, defendants argue that the Fifth Cause of Action (prescriptive easement) is subject to demurrer for failure to join TEG Partners, LLC, which defendants argue is an indispensable party to this claim. Code Civ. Proc. § 762.010, which applies to quiet title claims, states:

The plaintiff shall name as defendants in the action the persons having adverse claims to the title of the plaintiff against which a determination is sought.

Defendants have not shown/explained how Mr. Chowdhry and TEG Partners, LLC have adverse interests with Mr. Chowdhry’s claimed right to “walk and hike on the Hermosa Avenue Segment,” nor it is apparent how the grant of such rights would negatively/adversely impact TEG Partners, LLC.

Leave to amend.

The Court generally exercises a liberal stance with respect to permitting amendments to pleadings. Here, however, the First Cause of Action is plainly barred by res judicata, and Plaintiffs have not adequately explained how any amendment(s) would or could change that result. Further, given that the Fourth Cause of Action is surviving the demurrer, it is not clear to the Court that the First Cause of Action provides Plaintiff with any benefit. Accordingly, as to the First Cause of Action, the demurrer is sustained without leave to amend.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 8

26-CIV-00278 SHANNON PEKARY VS. PALO ALTO PARK MUTUAL WATER
COMPANY

SHANNON PEKARY
PALO ALTO PARK MUTUAL WATER COMPANY

PRO SE
TERANCE D. ORME

Petition for Writ of Mandate

TENTATIVE RULING:

No tentative ruling as this is an evidentiary hearing. Parties to appear.
